THE STATE

Versus

WITNESS NKIWANE

AND

CHELESANI MPOFU

AND

SIYABONGA NCUBE

IN THE HIGH COURT OF ZIMBABWE
KABASA J with Mr. J Ndubiwa and Mr. J Zulu
HWANGE 10 and 11 March 2026

Criminal Trial

C Gorerino, for the state
C Manyeza, for the 1st accused
T Gaunje, for the second accused
T Sibanda, for the third accused

KABASA J: The 3 accused appeared before us on a charge of murder to which they all pleaded not guilty.

The state alleges that on 9 March 2025 the 3 accused and the now deceased attended a birthday party at Canani Business Centre. The now deceased was armed with a catapult and a knife. He insulted accused 2 using vulgar language and went on to strike him with a catapult propelled stone. All 3 then charged towards the now deceased, accused I disarmed him of the knife and stabbed him on the wrist and all three assaulted him using a knobkerrie and logs. The deceased succumbed to the injuries he sustained as a result of the assault.

All 3 accused do not deny being present at the birthday party on the day in question. Accused 1 explained that the deceased was injured on the wrist after he tried to disarm him of the knife. Accused 2assaulted him on the front part of the head. He tried to stop the scuffle reminding them that they were relatives who should not fight. As for accused 2 he explained that the now deceased insulted him repeatedly telling him that his mother was a prostitute and

that is why he does not know his father. He also mentioned his mother's private part and struck him with a catapult propelled stone. The accused then hit him once on the forehead using a walking stick. The other 2 accused did not assault the now deceased but confirmed the insults hurled at accused 2 and the assault on accused 2.

The postmortem report gave the deceased's cause of death as:

1. Brain contusion

2. Head trauma

The contusion was on the frontal region of the head. This injury is consistent with the weapon accused 2 said he used and also confirms the accused story regarding the part of the body he directed the assault.

It was therefore clear that the cause of death was directly linked to the assault perpetrated by accused 2.

The 2 witnesses who testified confirmed the assault although the second witness did not witness the actual assault by accused 2 on the deceased. Both witnesses' narration painted a picture of the deceased being aggressive on this day and the efforts made by accused 2 to assist him, after he sustained the injury which later took his life.

From the totality of the evidence we entertained doubts as to accused 1's role. Did he deliberately injure the now deceased with the knife or it was accidental as he tried to disarm him? Accused 2 in his defence outline painted a picture of accused 1 being a peace maker and trying to diffuse the situation but when giving evidence changed and said accused I also assaulted the now deceased. Why the change? What brought about that change? Is his evidence to be relied on in the circumstances? We think not.

We considered the evidence of the witnesses, the postmortem report, the accused 2's own admission that he did assault the now deceased and the part of the body he assaulted and were left in no doubt that the fatal assault was from accused 2.

Accused 3 saw accused 2 assaulting the now deceased on the head but did not see accused 1 assaulting him.

Accused 1 may have assaulted the now deceased as he attempted to stop him from being a nuisance. We are however not satisfied the case against him was proved beyond a reasonable doubt and accordingly give him the benefit of the doubt.

As for accused 2 he was provoked. The words uttered by the now deceased were hurtful and demeaning. Not only did he tell him that his mother was a prostitute and that is why he did not know his father but he also mentioned his mother's private parts. Any reasonable person would have been enraged at such demeaning words. Not only that but the now deceased would just not leave accused 2 alone, he also struck him with a catapult propelled stone.

Section 238 of the Criminal Code provides for the defence of provocation. It is not a complete defence but reduces murder to culpable homicide.

Accused 2 acted out of anger and one can understand why he was so angry that he struck the deceased on the head with a walking stick. The strike resulted in the deceased sustaining brain contusion and died as a result of that trauma to the head. The nature of the assault is not indicative of an intention to kill or even the realisation of such a possibility. It is indicative of an assault perpetrated in the heat of the moment, a lashing out in response to extreme provocation.

The provocation which resulted in loss of self-control justifies the reduction of the charge of murder to a conviction of culpable homicide. (*S* v *Mugarapanyama* HH 211-23)

The state's concession when making closing submissions, albeit coming late as it did, was properly made. The state conceded that the evidence sustained a conviction of culpable homicide. The charge ought to have been culpable homicide right from the start.

As for accused 3 there was no evidence at all linking him to the offence. The manner in which the assault occurred cannot even remotely call for the application of the doctrine of common purpose.

With that said we are not satisfied the case against accused 1 and 3 was proved beyond a reasonable doubt and accordingly find both not guilty and acquitted.

As for accused 2, provocation is available to him and reduces murder to culpable homicide.

Accused 2 is accordingly found guilty of culpable homicide.

Sentence

You are a 22 year old first offender. At 22 you are youthful and with youthfulness comes immaturity. Youthfulness is therefore a strong mitigatory factor. (*S* v *Zaranyika & Ors* 1995 (1) ZLR 270)

You stand convicted of culpable homicide as we were satisfied you acted out of provocation. The deceased uttered very hurtful words which were also demeaning, calling your mother a prostitute and also insulting you by making reference to your mother's private parts. He was the aggressor as he also hit you with a catapult propelled stone. He was the author of his own misfortune.

You tried to assist the deceased after the assault. You also assisted financially at his funeral.

The deceased was your uncle and so his death is likely going to haunt you for a long time to come.

You will also live with the stigma of being labelled a murderer

In aggravation is the fact that you used a walking stick to inflict the injuries and aimed at the head which is a very vulnerable part of the body. A life was unnecessarily lost.

Courts have time without number called for the respect of the sanctity of life, life ought not to be taken through violence inflicted by another.

Due to the mitigatory factors present *in casu*, the presumptive penalty is 3 years. We see no reason to depart from this presumptive penalty.

You are accordingly sentenced to 3 years imprisonment of which 1 year is suspended for 5 years on condition you do not within that period commit an offence of which an assault or violence on the person of another is an element and for which upon conviction you are sentenced to a term of imprisonment without the option of a fine.

T.E.S - 2 years' imprisonment.

The knobkerrie, knife sheath and yellow t-shirt are to be destroyed.

National Prosecuting Authority, state's legal practitioners
Mhaka Attorneys, 1st accused's legal practitioners
Legal Aid Directorate, 2nd accused's legal practitioners
Dube Nkala and company, 3rd accused legal practitioners